

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 1

☐ COMMITTEE AMENDMENT

(Date)

I move to amend House Bill No. 1381, by substituting the attached floor substitute (Request # 3964) for the title, enacting clause and entire body of the measure.

Submitted by:


Senator Murdock

I hereby grant permission for the floor substitute to be adopted.


Senator Coleman, Chair (required)

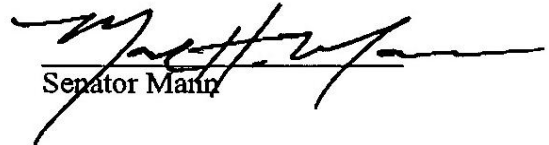
Senator Alvord


Senator Brooks

Senator Grellner

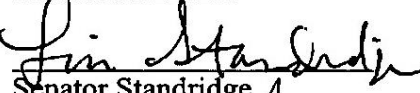

Senator Guthrie

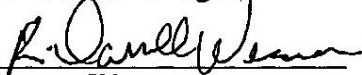
Senator Paxton, President Pro Tempore


Senator Mann

Senator Pugh

Senator Reinhardt


Senator Standridge


Senator Weaver

Senator Daniels, Majority Floor Leader

Note: Business and Insurance committee majority requires six (6) members' signatures.

Murdock-CAD-FS-HB1381
4/21/2026 9:44 AM

(Floor Amendments Only)

Date and Time Filed: 4-21-26 1:50 pm fd

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

HOUSE BILL NO. 1381

By: Moore of the House

and

Murdock and Daniels of the
Senate

FLOOR SUBSTITUTE

An Act relating to alcoholic beverages; amending 37A O.S. 2021, Section 2-110, as last amended by Section 1, Chapter 417, O.S.L. 2024 (37A O.S. Supp. 2025, Section 2-110), which relates to mixed beverage license; allowing certain licensee to provide certain complimentary tasting; establishing certain requirements for certain complimentary tasting; amending 37A O.S. 2021, Section 3-108, which relates to licensed distributor agreement required for licensed brewers or cider manufacturers; prohibiting certain licensee from requiring certain distributor to accept certain delivery; allowing certain licensed distributor to refuse certain delivery; amending 37A O.S. 2021, Section 3-116, as amended by Section 1, Chapter 238, O.S.L. 2023 (37A O.S. Supp. 2025, Section 3-116), which relates to sale of alcoholic beverages made in foreign country; prohibiting certain licensee from requiring certain wholesaler to purchase certain goods as certain condition of entitlement; prohibiting certain licensee from requiring certain wholesaler to accept certain delivery; allowing certain wholesaler to refuse certain delivery; updating statutory language; and providing an effective date.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. AMENDATORY 37A O.S. 2021, Section 2-110, as
3 last amended by Section 1, Chapter 417, O.S.L. 2024 (37A O.S. Supp.
4 2025, Section 2-110), is amended to read as follows:

5 Section 2-110. A. A mixed beverage license shall authorize the
6 holder ~~thereof~~ to:

7 1. ~~To purchase~~ Purchase alcohol, spirits, beer ~~and/or,~~ or wine
8 in retail containers from the holder of a wine and spirits
9 wholesaler and beer distributor license as specifically provided by
10 law;

11 2. ~~To sell~~ Sell, offer for sale, and possess mixed beverages
12 for on-premises consumption only, provided:

13 a. the holder of a mixed beverage license issued for an
14 establishment which is also a restaurant may purchase
15 wine directly from a winemaker and beer directly from
16 a small brewer who is permitted and has elected to
17 self-distribute as provided in Article XXVIII-A of the
18 Oklahoma Constitution, and

19 b. the holder of a mixed beverage license that is also a
20 holder of a retail wine license or retail beer license
21 or both a retail wine license and retail beer license
22 shall not be prohibited from the on-premises sale of
23 wine or beer, according to the license held, for off-

24

1 premises consumption, subject to the limitations of
2 the retail wine license or retail beer license; ~~and~~

3 3. ~~To sell~~ Sell spirits in their original packages for
4 consumption on its premises under the following conditions:

5 a. spirits in their original packages shall remain and be
6 consumed in the club suite of a mixed beverage
7 licensee and may not be removed from the club suite if
8 not consumed in their entirety at or before the
9 conclusion of the period for which the club suite was
10 made available to a specific patron or patrons by the
11 mixed beverage licensee, and

12 b. spirits in their original packages to be consumed in
13 the club suite are provided exclusively by the mixed
14 beverage licensee; and

15 4. Provide, free of charge for on-premises consumption only, no
16 more than one alcoholic beverage containing one and one-half (1 1/2)
17 ounces of spirits, six (6) ounces of wine, or twelve (12) ounces of
18 beer per day for a complimentary tasting to a guest or customer who
19 is twenty-one (21) years of age or older.

20 B. Sales and service of mixed beverages by holders of mixed
21 beverage licenses shall be limited to the licensed premises of the
22 licensee unless the holder of the mixed beverage license also
23 obtains a caterer license or a mixed beverage/caterer combination
24 license, or if the holder of a mixed beverage license is an

1 Entertainment District Tenant Party as defined in Section 2393 of
2 Title 68 of the Oklahoma Statutes. A mixed beverage license shall
3 only be issued in counties of this state where the sale of alcoholic
4 beverages by the individual drink for on-premises consumption has
5 been authorized. A separate license shall be required for each
6 place of business.

7 C. Sales and service of mixed beverages by holders of mixed
8 beverage licenses of an Entertainment District Tenant Party shall be
9 limited to the premises of an Entertainment District. For purposes
10 of this subsection, premises may be defined as the designated area
11 of an Entertainment District as defined in Section 2393 of Title 68
12 of the Oklahoma Statutes.

13 D. Holders of a mixed beverage license shall not be prohibited
14 from obtaining and holding a retail beer license or retail wine
15 license or both a retail beer license and retail wine license;
16 provided, that each holder qualifies and maintains the
17 qualifications for each license held as set forth in this title and
18 the rules promulgated by the Alcoholic Beverage Laws Enforcement
19 ~~(ABLE)~~ Commission.

20 E. Upon application, a mixed beverage license shall be issued
21 for any place of business functioning as a motion picture theater,
22 as defined by Section 1-103 of this title. Provided, that upon
23 proof of legal age to consume alcohol, every patron being served
24 alcoholic beverages shall be required to wear a wrist bracelet or

1 receive a hand stamp identifying the patron as being of legal age to
2 consume alcohol. This requirement shall only apply inside a motion
3 picture theater auditorium where individuals under the legal age to
4 consume alcohol are allowed.

5 F. Holders of a mixed beverage license with a licensed premises
6 on a business establishment that meets the classification of a golf
7 course or country club pursuant to the most recently adopted North
8 American Industry Classification System (NAICS) may also sell beer
9 in sealed original packages for on-premises consumption. Such
10 holders' sales of more than two sealed original packages to one
11 person at one time for on-premises consumption shall not be
12 considered an unlawful inducement to stimulate consumption of
13 alcoholic beverages under the Oklahoma Alcoholic Beverage Control
14 Act, and patrons may remove sealed original packages from the
15 licensed premises.

16 SECTION 2. AMENDATORY 37A O.S. 2021, Section 3-108, is
17 amended to read as follows:

18 Section 3-108. A. The provisions of this section shall be in
19 effect except as otherwise provided in Article XXVIII-A of the
20 Oklahoma Constitution.

21 B. Subject to the provisions of subsection D of this section,
22 every licensed brewer or cider manufacturer authorized to sell ~~its~~
23 such licensee's beer or cider in this state shall:

1 1. Enter into a distributor agreement with a licensed
2 distributor, ~~as defined herein,~~ to sell the designated brands,
3 including brand extensions, of the brewer or cider manufacturer.
4 The agreement shall designate the sales territory of that licensed
5 distributor and the designated brands to be sold by the licensed
6 distributor. All such distributor agreements shall specifically
7 authorize this sale of the designated brands by a licensed
8 distributor within that sales territory. All such distributor
9 agreements shall further provide that the licensed brewer or cider
10 manufacturer who desires to sell a brand extension of a low-point
11 beer in ~~Oklahoma must~~ this state shall assign the low-point beer
12 brand extension to the licensed distributor to whom the licensed
13 brewer or cider manufacturer granted the exclusive sales territory
14 to the low-point beer brand from which the brand extension resulted;

15 2. Sell ~~its~~ a brewer's or cider manufacturer's registered and
16 approved designated brands only to a licensed distributor with whom
17 that brewer or cider manufacturer has a distributor agreement
18 designating the sales territory of the licensed distributor and the
19 designated brands to be sold by the licensed distributor;

20 3. Authorize only one licensed distributor for each designated
21 sales territory. Such licensed distributor shall be the only
22 licensed distributor for the designated brands of the authorizing
23 brewer or cider manufacturer within that designated sales territory;
24 and

1 4. Designate who is responsible for the distribution of ~~its~~ a
2 brewer's or cider manufacturer's designated brands.

3 C. Subject to the provisions of subsection D of this section,
4 any and all licensed distributors possessing the rights to
5 distribute a low-point beer brand in a specific territory prior to
6 the introduction of that low-point beer's correlating beer brand
7 extension in that specific territory shall retain the right to
8 distribute the low-point beer from which the brand extension
9 resulted.

10 D. 1. No later than August 2, 2018, a brewer shall assign the
11 exclusive right to distribute a beer brand, including brand
12 extensions ~~thereof~~ of such beer brand, to the low-point beer
13 distributor who was, prior to October 1, 2018, assigned the
14 exclusive distribution rights to the low-point beer from which the
15 brand extension arose without charge or payment of compensation,
16 unless the low-point beer distributor is, on October 1, 2018, a
17 brewer of beer or low-point beer and has ~~therefore~~ been distributing
18 low-point beer pursuant to a license to so distribute, subject to
19 the provisions of subsection E of this section. This subsection
20 shall not apply to a small brewer as defined in Section 1-103 of
21 this title.

22 2. With respect to brand extensions ~~which~~ that arise after
23 October 1, 2018, the brewer or cider manufacturer shall assign the
24 exclusive right to distribute the brand extension to the distributor

1 who has been assigned the exclusive distribution rights to the beer
2 or cider from which the brand extension arose, without charge or
3 payment of compensation.

4 3. With respect to a brand of beer or cider which was, prior to
5 April 15, 2017, distributed in this state only as strong beer or
6 cider pursuant to the Oklahoma Alcoholic Beverage Control Act then
7 in effect, if a low-point version of the brand is introduced after
8 April 15, 2017, no later than August 2, 2018, the brewer or cider
9 manufacturer shall assign the exclusive rights to distribute the
10 low-point version of the brand to the distributor who was,
11 immediately prior to the introduction of the low-point version of
12 the brand, assigned the exclusive distribution rights to the strong
13 version of the brand without charge or payment of compensation.

14 4. No later than August 2, 2018, with respect to dual strength
15 beer, the brewer thereof shall assign the exclusive right to
16 distribute the brands represented by the dual strength beer to
17 either the low-point beer distributor or the nonresident seller who
18 had ~~theretofore~~ been assigned the exclusive distribution rights in
19 the territory to either version of the dual strength beer; provided,
20 however, whichever party is selected by the brewer ~~must~~ shall
21 compensate the party that was not selected by the brewer for the
22 loss of the distribution rights with respect to that particular
23 territory. Whichever party is selected shall obtain the requisite
24

1 distributor license and shall be subject to the provisions of the
2 Oklahoma Alcoholic Beverage Control Act.

3 5. Compensation for the purposes of this provision shall be the
4 fair market value of the party losing its distribution rights with
5 respect to the beer within that specific territory. Fair market
6 value shall be determined as set forth in Section 3-111 of this
7 title and shall take into account all aspects of brand valuation,
8 including, but not limited to:

- 9 a. the diminished value of the distribution of one
10 version of beer as a consequence of the subsequent
11 introduction of the other version,
- 12 b. the expected annual sales and earnings of the
13 distributor agreement,
- 14 c. the length of time the existing distributor held in
15 the distribution sales agreement, and
- 16 d. any other relevant items of value, such as goodwill
17 and going concern.

18 E. If a brewer, whether directly or through an affiliate,
19 maintained one or more licenses to distribute low-point beer in this
20 state prior to October 1, 2018, then up to two of the brewer's low-
21 point beer distribution licenses shall automatically convert to beer
22 distribution licenses on October 1, 2018, and such brewer shall be
23 permitted to continue to distribute beer in two territories within
24 which it currently distributes without the appointment of a

1 distributor for such period of time as determined by the Legislature
2 and consistent with the Oklahoma Constitution ~~of the State of~~
3 ~~Oklahoma~~; provided however, if such distributor shall not be
4 permitted to distribute beer outside of the territory unless it
5 enters into a distributor agreement with an independent licensed
6 distributor as provided for in paragraph 1 of subsection B of this
7 section. This ~~section~~ subsection shall not apply to small brewers
8 that have elected to self-distribute.

9 F. If, on October 1, 2018, a licensed distributor possesses
10 inventory of a brand that it is no longer authorized to distribute
11 within this state, such inventory shall be sold to a licensed
12 distributor authorized to distribute such brand, at a price not to
13 exceed the total of the actual purchase price of the selling
14 distributor plus the cost of inbound and outbound shipping to the
15 purchasing distributor. The provisions of this ~~paragraph~~ subsection
16 shall not apply to inventory purchased on or after September 15,
17 2018.

18 G. No brewer or small brewer licensee shall require a licensed
19 distributor to accept delivery of any beer that such licensed
20 distributor did not order. A licensed distributor may refuse
21 delivery of any unordered product without penalty or retaliation.

22 SECTION 3. AMENDATORY 37A O.S. 2021, Section 3-116, as
23 amended by Section 1, Chapter 238, O.S.L. 2023 (37A O.S. Supp. 2025,
24 Section 3-116), is amended to read as follows:

1 Section 3-116. A. Any manufacturer or subsidiary of a
2 manufacturer who markets its products solely through a subsidiary or
3 subsidiaries, a distiller, rectifier, bottler, winemaker or importer
4 of alcoholic beverages, bottled or made in a foreign country, either
5 within or without this state, may sell such brands or kinds of
6 alcoholic beverages to every licensed wine and spirits wholesaler
7 who desires to purchase the same, on the same price basis and
8 without discrimination or inducements, and shall further be required
9 to sell such beverages only to those persons licensed as wine and
10 spirits wholesalers.

11 B. The provisions of subsection A of this section shall not
12 apply to a brewer except as otherwise ~~stated herein~~ provided for in
13 this section. In the event a brewer, who has entered into
14 territorial distribution agreements with beer distributors in this
15 state, markets wine and spirits products in this state either itself
16 or through a subsidiary or affiliate, then such brewer, subsidiary,
17 or affiliate may elect to designate beer distributors, with whom it
18 has entered into territorial distribution agreements, as its
19 designated wholesalers for any wine and spirit products to be sold
20 by the brewer, subsidiary, or affiliate within the beer
21 distributors' existing territories, provided such beer distributors
22 ~~must~~ shall also hold a wine and spirits wholesaler license. In such
23 event, the beer distributors shall be deemed designated wholesalers
24 for the territory with respect to the designated products.

1 Provided, in the event a beer distributor has not obtained a wine
2 and spirits license, has elected not to sell wine and spirits in its
3 respective territory or, in the brewer's commercially reasonable
4 discretion, is not suitable to sell wine and spirits in its
5 respective territory, then the brewer, subsidiary, or affiliate may
6 extend the territory of an existing beer distributor, with whom it
7 has entered into a territorial distribution agreement and who holds
8 a wine and spirits wholesaler license, for the territory. For
9 purposes of this subsection only, the phrase "subsidiary or
10 affiliate" shall mean any entity that the brewer controls, is
11 controlled by, or is under common control with, during the time that
12 the wine and spirits brands are offered for sale in this state, and
13 "control" shall mean ownership of more than fifty percent (50%) of
14 the voting securities or assets of, or the ability to dictate the
15 material operations of, another entity. If the brewer, subsidiary,
16 or affiliate sells the wine and spirits brands to a manufacturer
17 other than one that would otherwise fall within the provisions of
18 this subsection, then the rights provided in this subsection which
19 relate to the wine and spirits brands shall terminate. The rights
20 provided to beer distributors pursuant to Section 3-111 of this
21 title shall not be extended to apply to the wine or spirits brands
22 distributed pursuant to this subsection.

23 C. No manufacturer or nonresident seller shall require a wine
24 and spirits wholesaler to purchase any alcoholic beverages or any

1 goods, wares, or merchandise as a condition to the wine and spirits
2 wholesaler obtaining or being entitled to purchase any alcoholic
3 beverages. No licensed manufacturer or nonresident seller shall
4 require a wine and spirits wholesaler to accept delivery of any
5 alcoholic beverages that such wine and spirits wholesaler did not
6 order. A wine and spirits wholesaler may refuse delivery of any
7 unordered alcoholic beverages without penalty or retaliation.
8 ~~Violation~~ A violation of this ~~section~~ subsection shall be a
9 misdemeanor. Conviction ~~hereunder~~ of any such violation shall
10 automatically revoke the violator's license.

11 D. In the event a manufacturer or nonresident seller has not
12 designated a designated wholesaler to sell ~~its~~ such manufacturer's
13 or nonresident seller's products in the state, the nondesignated
14 products shall be posted ~~in accordance with the~~ as following:

15 1. On the first business day of each month, the manufacturer
16 shall post with the ~~ABLE~~ Alcoholic Beverage Laws Enforcement (ABLE)
17 Commission the price of all wine and spirits ~~it~~ such manufacturer
18 proposes to offer for sale to licensed wine and spirit wholesalers
19 in this state. All prices shall become effective on the first
20 business day of the following month and shall remain in effect and
21 unchanged for a period ~~of~~ not less than one (1) month. The posting
22 shall be submitted on a form approved by the ABLE Commission and
23 shall identify the brand, size, alcohol content, and price of each
24 item intended to be offered for sale. No change or modification of

1 the posted price shall be permitted except upon written permission
2 from the ABLE Commission based on good cause shown;

3 2. When a new item is registered, or an old item is
4 discontinued, or any change is made by a manufacturer or nonresident
5 seller as to price, age, proof, label, or type of bottle of any item
6 offered for sale in this state, such new item, discontinued item, or
7 change in price, age, proof, label, or type of bottle of any item
8 shall be listed separately on the cover page of the price schedule
9 and, in the case of prices changed, shall reflect both the old and
10 the new price of the item changed. All new items and changes as to
11 age, proof, label, or type of bottle in which any item is offered
12 for sale shall first be submitted in writing to the ABLE Commission
13 for approval under such requirements as it may deem proper.
14 Approval or disapproval of price changes shall not be required if
15 filed in conformity with the provisions of this subsection.

16 a. In addition to the foregoing requirements, the
17 manufacturer shall, at the same time, on regular forms
18 provided by the ABLE Commission, re-register all ~~items~~
19 ~~of alcoholic beverage which~~ beverages that the
20 manufacturer had registered and offered for sale in
21 this state during the previous price period.

22 b. A short form of price posting may be permitted by the
23 ABLE Commission for any price period in which no new
24 item is offered or old item discontinued, or change is

1 made in the price, age, proof, label, or type of
2 bottle of any item offered by any manufacturer. Such
3 short form shall contain only such statements as the
4 Director of the ABLE Commission may require or permit;

5 3. The brand name, size, proof, and type of alcoholic beverages
6 ~~must~~ shall be shown on each container sold in this state;

7 4. No brand of alcoholic beverage shall be listed on a price
8 list or posting in more than one place, or offered for sale by more
9 than one method, or at more than one price, ~~except as provided~~
10 ~~hereafter~~ unless a manufacturer:

11 a. ~~a manufacturer~~ who has posted F.O.B. prices from a
12 foreign shipping point ~~shall~~ also ~~list~~ lists the same
13 ~~item(s)~~ items at ~~an~~ no more than one United States
14 F.O.B. point ~~within the continental United States.~~
15 ~~Only one United States F.O.B. point shall be~~
16 ~~permitted, and~~

17 b. ~~a manufacturer may list~~ lists on their price list or
18 ~~posting~~ posts an item of specific size that may be
19 packaged in more than one type or design of container,
20 provided that the containers being offered have been
21 approved by the ABLE Commission;

22 5. The manufacturer shall sell to the wine and spirits
23 wholesalers all items of wine and spirits at the current posted
24

1 price in effect on the date of the shipment as shown on the
2 manifest, bill of lading, or invoice;

3 6. A full and correct copy of each such price registration
4 shall be transmitted to wine and spirits wholesalers on the same day
5 such prices are filed with or mailed to the ABLE Commission. Proof
6 of such mailing or delivery shall be furnished to the ABLE
7 Commission by the manufacturer with the price registration or upon
8 request;

9 7. The sale of, or offer to sell, ~~of any item of~~ alcoholic
10 beverage by a manufacturer to a wine and spirits wholesaler at a
11 price not in compliance with the price posted with the ABLE
12 Commission may be deemed a violation; and

13 8. This subsection shall not apply to a manufacturer that has
14 designated a wine and spirits wholesaler to sell its product in the
15 state or a brewer who has appointed a beer distributor as a
16 designated wholesaler pursuant to subsection B of this section, with
17 respect to designated products.

18 E. Every wine and spirits wholesaler is authorized:

19 1. To ship orders to retailers non-sequentially; and

20 2. To fill orders non-sequentially only on products that have
21 been designated as being in short supply.

22 As used in this subsection, "short supply" means those
23 individual brand labels of alcoholic beverages normally supplied by
24 the manufacturer or manufacturers that, for whatever reason, lack

1 sufficient supply to fully satisfy the demand of the Oklahoma retail
2 ~~and/or~~ or on-premises market.

3 F. Upon the manufacturer notifying the wholesalers of products
4 designated as short supply, the wholesaler shall also then notify
5 the ABLE Commission as soon as practical.

6 G. The ABLE Commission shall publish a list of every product
7 designated as short supply by the Director on its website every
8 thirty (30) days. After thirty (30) days, the wholesaler shall send
9 an updated notice to the ABLE Commission if the product or products
10 are in short supply. The ABLE Commission shall remove those
11 products if notification is not received. These activities shall
12 not constitute a violation of this title or any rule promulgated
13 under this title.

14 SECTION 4. This act shall become effective November 1, 2026.

15
16 60-2-3964 CAD 4/21/2026 2:03:59 PM
17
18
19
20
21
22
23
24